

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 22-010
Amendments to Title 18, Chapter 1 of the Chickasaw Nation Code
(Purchase Protocol)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the nation, and

WHEREAS, it is desirable to update and streamline the codified processes of real property and lease acquisitions in the name of the Chickasaw Nation, and

WHEREAS, changes to the Code will greatly benefit that process.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby amends Title 18, Chapter 1, of the Code of Laws of the Chickasaw Nation, in the following manner (additions are shown in red, deletions are stricken through):

“SECTION 18-107 PURCHASE PROTOCOL.

A. The Governor shall exercise his authority in engaging in negotiations for the acquisition ~~purchase~~ of real property which will be titled in the name of the Chickasaw Nation. Such negotiations may be engaged in by the Governor either in person or through a third party or parties, selected by the Governor, or by a combination of both third parties and the Governor; provided, however, that no acquisition may be effected in the name of the Chickasaw Nation without the approval of the Legislature.

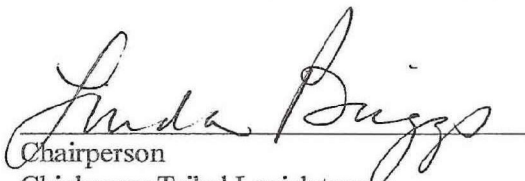
B. Once the terms are negotiated ~~those negotiations are completed~~ to the satisfaction of the Governor, he shall ~~notify~~ submit to the Legislature a request to acquire that real property in the form of a draft resolution which includes the legal description of the property. ~~of the completion of those negotiations;~~ The Governor shall also include with in such ~~notification~~ submission pertinent facts relating to the real property, including any proposed or suggested plans for such real property and its appraised value, asking price or negotiations. ~~once it is acquired;~~

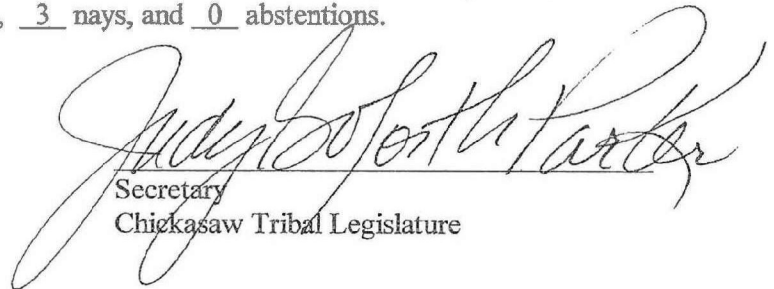
C. All such information provided by the Governor shall be treated by the Legislature as confidential information pursuant to Section 16-702 *et seq.*

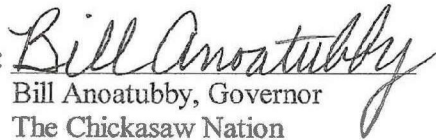
DE. The Legislature shall, in its next regularly scheduled session, or in special session called by the Governor for that purpose, take action regarding the acquisition purchase as negotiated by the Governor.

~~D. — Once the Legislature has authorized the purchase of real property and that purchase has been completed by the Governor, the Governor shall request that the Bureau of Indian Affairs place that real property into trust for the Chickasaw Nation by the United States of America, unless the Legislature has specifically exempted that real property from being placed into trust status."~~

Acted upon in regular session of the Chickasaw Tribal Legislature, meeting on August 19, 2005 at Ada, Oklahoma, by a vote of 10 ayes, 3 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 19 2005

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Explanation: This resolution clarifies the protocol to be used in making real property purchases. It clarifies current statutes.

Requested by: Bill Anoatubby, Governor
The Chickasaw Nation

Presented by: Steve Woods, Chairman
Legislative